

## 24SMCV05254 24SMCV05254

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-06-23

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Case Number: 24SMCV05254 Hearing Date: June 23, 2026 Dept: M

CASE NAME: Taylor v. Sandoval

CASE NO.: 24SMCV05254

MOTION: Motion

to Continue Trial

HEARING DATE: 6/23/2026

Legal

Standard

Pursuant to California Rules of

Court ("CRC"), rule 3.1332(a), "To ensure the prompt disposition of civil

cases, the dates assigned for a trial are firm.

All parties and their counsel must regard the date set for trial as

certain." Under CRC Rule 3.1332(b), "A party seeking a continuance of the date

set for trial, whether contested or uncontested or stipulated to by the

parties, must make the request for a continuance by a noticed motion or an ex

parte application under the rules in chapter 4 of this division, with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the continuance is discovered.”

Under CRC Rule 3.1332(c),

“[a]lthough continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may include good cause include:

(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2) The unavailability of a party because of death, illness, or other excusable circumstances;

(3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5) The addition of a new party if:

(A) The new party has not had a reasonable opportunity to conduct

discovery and prepare for trial; or

(B) The other parties have not had a reasonable opportunity to conduct

discovery and prepare for trial in regard to the new party's involvement in the

case;

(6) A party's excused inability to obtain essential testimony, documents,

or other material evidence despite diligent efforts; or

(7) A significant, unanticipated change in the status of the case as a

result of which the case is not ready for trial."

CRC

Rule 3.1332(d) sets forth other factors that are relevant in determining

whether to grant a continuance.

Analysis

Defendant Edith Sandoval moves to

continue the August 10, 2025, final status conference, August 17, 2026, trial,

and all discovery deadlines to January 18, 2027.

Defendant shows good cause to

continue trial due to the unavailability of her trial counsel, Ms.

Zuniga.

Defendant explains that Ms. Zuniga began maternity leave on May 15,

2026. (Capra-Cunningham Decl., ¶¶ 3, 5.) Ms. Zuniga will therefore be

unavailable for the August 2026 trial. The parties have also stipulated to a trial

continuance. (Id., ¶ 4.) The Court's

next available trial date will be in January 2028, and the Court will set the

trial date at the hearing.

All discovery deadlines are to follow the new

trial date per code.